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Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1050**	**5429**	**6442**
Section 2	**1737**	**9208**	**10900**
Section 3	**687**	**3622**	**4300**
Total	**3474**	**18259**	**21642**

Answer-to-Question-_1_

Part One: Spending Conditions

Standing

The State of California has standing to sue in this case. It faces an injury (revocation of federal funding), the injury is directly linked to the law, and it the injury is redressable if the court strikes down the law. The issue is ripe, since the state is dealing with wildfire damage as we speak. Precedent also indicates that this issue does not fall within the political question doctrine (see South Dakota).

State Sovereignty

Congress cannot commandeer the state legislature (see Printz), but it can pass spending conditions that exert pressure on states to pass legislation (South Dakota). California is unlikely to succeed on an argument that this part of the statute violates state sovereignty.

Delegation

Congress's delegation of power to the Interior Secretary is constitutional. Under Mistretta, Congress can delegate as long as it provides an intelligible principle for guidance. The "substantial mitigation of risk" is likely to be held as intelligible, since the Court has upheld every principle since Mistretta was decided. The court's power of judicial review over the Secretary's decision is also acceptable, since Congress is not delegating a veto to itself (Chadha).

Spending Power

South Dakota established five factors that must be met in order for a spending condition to be constitutional: the spending must promote the general welfare; the condition must be unambiguous; the condition must relate to the federal interest in particular national projects; the condition imposed on the states must not be unconstitutional; and the condition must not be coercive.

The "general welfare" and "related interest" factors are easily met here—wildfires certainly affect the well-being of the country as a whole, and the federal government's condition of "more aggressive regulation of fire response" is certainly related to the government's interest in containing wildfires. Assuming the Court does not treat this as an impermissible delegation or a violation of state sovereignty, this will also likely satisfy the fourth "constitutionality" prong.

California could attempt a challenge on the grounds that the cut is coercive, but it is unlikely to succeed. Even if the United States Forest Service (USFS) spends half of its $2 billion annual expenditure on fighting California wildfires, the total value of services lost by California amounts to $1 billion (USFS cuts) + $0.6 billion (FMAG cuts) = $1.6 billion, or just 0.8% of the state's annual $200 billion budget. A cut of this magnitude is much closer in scale to the roughly 0.5% budget cut faced by South Dakota than the 10% budget cut threatened by the revocation of Medicaid funding in NFIB. While it's not clear exactly where the line between "pressure" and "coercion" lies, it seems unlikely that the courts will hold that it lies between 0.5 and 0.8% of the state's annual budget.

California's strongest challenge is based on the "ambiguity" factor. In South Dakota and NFIB, the conditions were clear—drinking ages and Medicaid expansion below a certain percentage of the federal poverty line are both unambiguous conditions. Here, however, wildfire control is a complex endeavor with many different possible approaches, and the only deciding factor is whether the reforms "substantially mitigate the risk." CA could

pass legislation that it reasonably believes to meet these criteria, only for the Interior Secretary to strike it down. The safeguard of judicial review also does not do anything to make the condition less ambiguous—it only changes who gets to exercise discretion. California is likely to succeed in challenging the law on this ground.

Part Two: Wildfire Tax

Standing

The state of California is not directly injured since it does not pay the tax, but California residents likely have standing to challenge the wildfire tax. Taxpayer status does not by itself confer standing to challenge a law (Fairchild), but the tax policy here is imposed on a specific subset of people within the general public, and those affected by the policy have standing (see Windsor).

The issue is also ripe even if CA residents have not yet suffered the penalty, since ripeness is satisfied when "the enforcement of a statute is certain but enforcement proceedings have not yet begun." (Casebook, 431).

Equal Sovereignty

While the equal sovereignty principle appears to apply outside of Enforcement Power cases, California is unlikely to succeed on an argument that it is violated here. In Shelby County, the majority held that targeting specific jurisdictions for intervention was acceptable if it is clear that the problem is most severe there; the principle was violated because the targeting formula was outdated. Here, the targeting data was from the last fifteen years, not from 1965, and it directly relates to the severity of future wildfires. The Court will likely uphold the law against a challenge on these grounds.

Tax Power

California might succeed by alleging that this law is closer to a penalty than a tax. This tax is on stronger grounds than the NFIB mandate in the limited sense that Congress explicitly labeled it as a tax, which may matter to the dissenting NFIB justices' votes. Like the mandate, there is also no scienter requirement attached to the tax, and the IRS seems to be tasked with collecting the money.

However, California can plausibly argue that this tax is an exceedingly heavy burden that is not properly calibrated. The federal government will argue that this tax is calibrated, since people below the filing threshold will be exempt. However, the tax is completely flat beyond this threshold. Unlike the individual mandate, it does not calibrate for dependents or joint filing status. Moreover, if the tax approaches $2000/year, then a resident just above the filing threshold of $10,400 will be paying almost 20% of her income—well above the "exceedingly heavy burden" of 10% struck down in Bailey.

The federal government could argue that this is irrelevant, since the criteria was that the tax must be high enough to effectively prohibit the conduct, and it is entirely possible that uncontrolled wildfires will still happen after this law's passage. But we could argue that the individual cost-benefit analysis in NFIB is irrelevant in a case where the penalty is not conditional on individual behavior. While it is not guaranteed to succeed, I think this is our strongest argument against the wildfire tax.

----------ANSWER-1-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-2-BELOW----------

Answer-to-Question-_2_

Part A

I will begin by discussing the potential constitutional issues specific to the main proposal and the dissenting proposal before examining the problems raised by both proposals.

1. Main Proposal

Restrictions on Presidential Appointments

The commissioners qualify as officers of the United States, since they "exercise[e] significant authority pursuant to the laws of the United States." (Buckley). Even under Sotomayor's higher test for officer status in Lucia, it is clear that the decisions of the commissioners can bind the US government, and these are not temporary offices.

The process appears to satisfy Art. II, § 2 by requiring the President to appoint and the Senate to confirm, but it also creates a role for the judiciary, which can constrain the President by requiring him to choose from a list of candidates chosen by the Chief Justice and the federal defense attorneys.

This is an additional step in the confirmation process—one which appears to be unconstitutional under Buckley. If the FEC statute cannot require the approval of the House in addition to the Senate and the President, then this proposal likely cannot require pre-approval by a nominating panel. Although the panel does not vote on confirmation after selection, it can basically veto any of the President's preferred choices by not including them on the list of nominees. Absent some other limitation, the

panel could also effectively decide who is appointed by only putting forth a list of seven nominees. For these reasons, the nominating committee is likely an unconstitutional provision.

It is less clear whether the political party and federal judge requirements are also unconstitutional. While they do not restrain the confirmation process in the same way that the nominating committee does, they do limit the President's executive power. If we read Buckley to stand for the proposition that additional limitations on Presidential appointment authority beyond those specified in Art. II, § 2 are unconstitutional, and we read Rehnquist's standard in Morrison to say that limitations on the President's ability to perform executive duties are unconstitutional, then these additional criteria should also be unconstitutional.

2. Dissenting Proposal

Election of Commissioners by Federal Judges

Art. II, § 2 says Congress may grant the appointment power of inferior officers in "the President alone, the Courts of Law, or in the Heads of Departments," so this judicial election system is constitutional if the Commissioners are inferior officers. Even if a court holds that these offices are actually executive or legislative in nature, Morrison allows inter-branch appointments if there is no "incongruity" between the functions performed by the courts and their duty to appoint. It seems unlikely that this appointment process would qualify as incongruous, since the duties of the commissioners are similar to those previously possessed by the courts.

Morrison provided four factors for distinguishing inferior and principal officers: (1) whether the individual can be removed by a superior, (2) whether they are only empowered to perform "limited duties," (3) whether they have limited jurisdiction, and (4) whether they have limited tenure. The fact that nobody can

fire a commissioner unless through impeachment weighs strongly in favor of principal officer status. Also, the duties, jurisdiction, and tenure of the commissioners are not "limited" like those of the special counsel in Morrison, since that position ceased to exist after the completion of a specific set of objectives.

The standard articulated in Edmond also supports this holding: since the work of the commissioners is not being supervised or directed by others who were appointed by the President with the advice and consent of the senate, the commissioners cannot be inferior officers. Therefore, this election system is unconstitutional.

3. Common Concerns

Is the Commission Really within the Judicial Branch?

Several of the duties attributed to the commission—specifically, appointing head public defenders, supervision, monitoring, and compensation—have been entrusted in the courts prior to this proposal. At a first glance, federal prosecution falls squarely within the executive power, so it seems odd that federal defense management would not also be an executive power, but past practice suggests that this is in fact left to the Article III institutions. This asymmetry may also make sense for other reasons: Article II provides the executive with the power to enforce laws, but the requirement of public defenders arises out of a concern for procedural due process, not law enforcement.

However, the proposal also allows the commission to establish policies and rules necessary to carry out the federal defense system and to submit appropriations to Congress, both of which appear to be legislative duties that Congress must delegate. The problem is that based on the facts presented, it is unclear whether there is an intelligible principle guiding the decisions of the commission.

In Mistretta, the Federal Sentencing Commission had the latitude to exercise policy judgment, but it also had a guiding list of purposes and goals. Schechter Poultry held that a statute allowing the President to impose codes of competition as long as they are "in the public interest" and do not create monopolies was too vague. Here, it is not clear whether the Commission has any list of goals or priorities, other than doing what is "necessary." However, the Court has not struck down a delegation under this doctrine in over eighty years, so this may not be the highest priority on our list of potential constitutional violations. If the Court strikes down the SORNA provision in Gundy, there is a stronger likelihood that this delegation will also be ruled unconstitutional.

All things considered, it appears to me that this commission occupies a role that is not purely judicial, but is instead quasi-judicial and quasi-legislative.

Officer Status of Defenders and Private Attorneys

One problem that may arise from this design is that the heads of each public defender office may qualify as inferior officers. If this is the case, then their appointment by the federal courts under the current process was acceptable under Art. II, § 2, since they were appointed by the "Courts of Law." But since this commission is neither a court nor supervised by one, its appointments may be unconstitutional. Under the Edmond standard cited above, it seems very possible that head defenders qualify as inferior officers, since they are supervised by the committee, who (as established earlier) likely qualify as principal officers.

Also, under the broader officer standard proposed by Thomas in Lucia, where anyone who has an ongoing statutory duty is an officer, every public defender would qualify as an inferior officer, which would be fine if the defenders were hired by the courts, but would make the problem even greater under this

proposal. However, I will set this concern aside since the facts state that public defenders are employees of the United States.

That being said—under any of the proposed standards for an officer, there is no risk of an appointments clause violation for allowing the committee to set private attorney hiring criteria, as long as this power was already vested in the judiciary, or it is a legislative power that meets the intelligible principle standard discussed above.

This is because the private attorneys are definitely not officers, as their duties are not continuing. Like the civil surgeons in Germaine, the duties of private attorneys are "occasional or temporary" rather than "continuing and permanent," since they can choose which cases to take and are paid by the assignment. Thus, this particular power seems to be constitutional.

Removal of Commissioners

If this commission is not purely judicial, but rather quasi-legislative and quasi-judicial for the reasons discussed above, then under Humphrey's Executor, the removal system appears to be unconstitutional. Unlike the statute in Humphrey's, there are no good-cause removal provisions here. In Public Co Accounting Oversight Board, Roberts described the holding in Humphrey's as "allowing Congress to create independent agencies with principal officers the president can only remove for cause" (Casebook, 268). This holding seems to imply that Congress could not create agencies with officers that the executive could not remove for good cause.

If Rehnquist's standard in Morrison controls instead, things get slightly more complicated. The removal restrictions must be assessed based on whether they impede the President's ability to perform executive duties. However, if the duties of public defenders are not executive in nature, then this standard seems to indicate that the President can be prohibited from firing

these commissioners, even if they are inefficient or bad at their jobs. Given that the President has a duty to take care that the laws are faithfully executed, and this may not be possible with an inept federal defender system, the Court may still find this to be unconstitutional, but this argument is less likely to succeed. After all, judges are also essential to ensuring that the laws are executed, but they are not subject to removal through any system other than impeachment. This is also why the impeachment requirement will be constitutional if the commission is purely judicial.

Part B

I would begin by taking the nomination panel from the main proposal and making it purely advisory—the President will be expected to follow the recommendations and the party/profession criteria, but he will not be under any legal duty to do so. This should eliminate the Buckley concerns.

Regardless of how Gundy turns out, I would also try to avoid delegation concerns by having the federal committee draft a series of clearer guidelines about the priorities of the Independent Defender Commission when deciding policies, hiring practices, and budget proposals. The list of priorities and goals in Mistretta could function as an example of what we ought to do.

Just in case the Courts interpret Humphrey's Executor in the way I did, I would implement several good-cause provisions in the statute governing when the president can remove a commissioner: perhaps for reasons like malfeasance in office and neglect of duty.

The head defender appointment process is more complicated. The most intuitive solution is to allow each court to appoint its head, so as to satisfy the inferior officer appointment process, but this would defeat the committee's goal of limiting conflicts of interest. In order to minimize these issues, I would suggest having each federal district court appoint the head federal

public defender of a different neighboring court, so that the public defender does not have to appear before the court that wields power over his position.

---------------ANSWER-2-ABOVE---------------

---------DO-NOT-EDIT-THIS-DIVIDER----------

---------------ANSWER-3-BELOW---------------

Answer-to-Question-_3_

The framers also understood that sometimes, competition between states can actually make everyone worse off when there is a collective action problem. This is why the Bedford Resolution was proposed and approved at the Philadelphia Convention.

Article I, § 8 was developed as an attempt to encapsulate the idea of collective action federalism in a series of enumerated powers. While this may not be dispositive for an "public meaning" originalist, I think it is a powerful guiding principle for originalists or purposivists who care about the Framers' intent. It is also an attractive argument for judicial pragmatists and law & economics adherents who primarily care about maximizing welfare or efficiency. Finally, it provides a coherent principle for interpreting clauses that are otherwise vague enough to allow a very wide range of interpretations.

I think it would be best to change the body of law so that it is consistent with these collective action federalism principles. We should allow Congress to enact nationwide legislation when it provides a basis for believing that it is solving a prisoner's dilemma or coordination problem that would make all states better off.

For these reasons, I would not overrule McCulloch, Gibbons, Darby, Wickard, or Heart of Atlanta. The incorporation of a national bank provided "a new line of credit/a financial diuretic" that allowed the entire US economy to modernize. Having a centralized authority determine how the channels of commerce should be regulated also makes sense; imagine, for example, the chaos that would occur if the states could not agree on which side of the road to drive. The policies at issue in Darby make sense from a collective action standpoint if the federal government was concerned that any individual state which imposed stronger labor protections for workers would see its businesses move across borders. The statute in Wickard also made most wheat farmers across the country better off because it protected them from potentially devastating price crashes, even though each individual farmer has a rational incentive to produce as much wheat as possible.

My desire to uphold Heart of Atlanta rests more on moral intuition than game theory, but I also think there's a plausible argument to be made that individual southern states do not want to be the "first mover" that allows people of color to patronize all businesses out of fear of reactionary anger and white flight, even though all of them would prefer to have more economic activity take place. Being able to blame the national government thus provides cover for state legislators.

I also think Lopez was correctly decided under this theory. As the casebook notes, more than forty states had already enacted laws against carrying guns in school zones when the federal law was enacted. Since the costs of gun violence in school zones are largely internalized by the states, state governments still have strong incentives to pass gun safety laws on their own. Moreover, allowing states to implement slightly different protections allows us to see which gun safety measures help schoolchildren the most.

The four cases I would overturn are Raich, Comstock, Garcia, and Printz. As Justice O'Connor noted in Raich, the "laboratories

of democracy" argument points in favor of allowing California to experiment with medical marijuana laws, especially since it took many precautions to ensure that its initiatives did not impose significant externalities on other states. The country would be much better off if it discovered that under certain conditions, medicinal marijuana could help people with chronic pain without spilling over into other communities.

I would overturn Comstock since, as Professor Hills noted, states have a very strong incentive to use their police power to civilly commit sexually dangerous individuals; this is not a place where the federal government really needs to intervene. I would overturn Garcia because states will internalize the costs of not abiding by FLSA; they will be less attractive employers, and will provide lower-quality services as a result.

Since the statute in Printz helps solve the collective action problem that is created when states enact lax gun sale laws to attract business, I would also reverse the court's decision there.